



CHAPTER 45.

An Act to regulate the fumigation of premises and articles with hydrogen cyanide; and for purposes connected with the matters aforesaid.

A.D. 1937.

[6th July 1937.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) With a view to protecting persons from danger in connection with the fumigation of premises and articles (including any ship, vehicle or aircraft) with hydrogen cyanide, the Secretary of State may make regulations with respect to such fumigation and, without prejudice to the generality of the foregoing provision, the regulations may—

Power to
make regu-
lations.

- (a) regulate the manner in which the hydrogen cyanide is to be generated and require the admixture therewith of any substance;
- (b) prohibit the carrying out of any such fumigation except by or under the supervision of persons having such training or experience as may be specified in the regulations and by such number of persons as may be so specified;
- (c) regulate the disposal of the residues of any substances used in the fumigation;

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- (d) for the purpose of preventing injurious effects resulting from the fumigation, impose temporary restrictions upon the use of any premises or article, and require such tests as may be specified in the regulations to be carried out after the fumigation;

and the regulations may distinguish between different classes of fumigation, according to the method or circumstances thereof or otherwise, and may contain special requirements or exemptions in relation to any such class.

(2) Regulations made under this section shall not apply to the fumigation of rabbit warrens or to fumigation carried out in the open air.

(3) If any person contravenes or fails to comply with any regulation made under this section, he shall, on summary conviction, be liable in respect of each offence to a fine not exceeding fifty pounds.

(4) All regulations made by the Secretary of State under this section shall be laid before Parliament as soon as may be after they are made.

Notice to
be given of
accidents
resulting
from
fumigation.

2.—(1) Whenever any accident which occasions loss of human life or personal injury occurs as the result of the fumigation of any premises, or article, the person by whom, or by whose agent, the fumigation was carried out shall forthwith send or cause to be sent to the Secretary of State notice of the accident and of the loss of human life or personal injury.

(2) Every such person as aforesaid who fails to comply with the provisions of this section shall be liable on summary conviction to a fine not exceeding five pounds.

Application
of certain
provisions
relating to
inquiries and
coroners'
inquests.
18 & 19
Geo. 5. c. 32.

3. The provisions of section fourteen and fifteen of the Petroleum (Consolidation) Act, 1928 (which relate to inquiries into accidents and to coroners' inquests on deaths resulting from accidents), shall, as set out with modifications in the Schedule to this Act, apply in relation to accidents of which notice is required by this Act to be given to the Secretary of State.

Power to
make Orders
in Council

4.—(1) His Majesty may by Order in Council apply the provisions of this Act, or such of those provisions as may be specified in the Order in Council, to fumigation

with any substance other than hydrogen cyanide in like manner as they apply to fumigation with hydrogen cyanide, subject to such adaptations, if any, as may be necessary, having regard to the nature of the said substance:

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—
applying
the Act to
fumigations
with other
gases.

Provided that a draft of any such Order as aforesaid shall not be presented to His Majesty in Council until a copy thereof has lain before each House of Parliament for twenty-eight days on which that House has sat, and, if either House within that period resolves that the draft be not so presented, no further proceedings shall be taken thereon.

(2) Any Order in Council made under this section may be varied or revoked by a subsequent Order in Council made in like manner and subject to the like provisions.

5.—(1) In the application of this Act to Scotland the expression “a master of the Supreme Court” means the Auditor of the Court of Session; the expression “attending before a court of record” means attending on citation in the High Court of Justiciary; the expression “stipendiary magistrate” means the sheriff; the expression “information” means complaint; and the expression “summons” means order.

Provisions
as to Scot-
land.

(2) Where in pursuance of this Act an inquiry or investigation is directed to be held in regard to any death occurring in Scotland, no inquiry in regard to that death shall, unless the Lord Advocate otherwise directs, be held in pursuance of the Fatal Accidents Inquiry (Scotland) Act, 1895.

58 & 59 Vict.
c. 36.

6.—(1) This Act may be cited as the Hydrogen Cyanide (Fumigation) Act, 1937.

Short title
and extent.

(2) This Act shall not extend to Northern Ireland.

A.D. 1937.

SCHEDULE.

Section 3.

PROVISIONS OF THE PETROLEUM (CONSOLIDATION) ACT, 1928, APPLIED FOR THE PURPOSES OF THIS ACT.

Inquiry into accidents.

14. The Secretary of State may direct an inquiry to be made by such person as he may appoint into the cause of any accident of which notice is required by this Act to be given to the Secretary of State, and where it appears to the Secretary of State either before or after the commencement of any such inquiry, that a more formal investigation of the accident, and of the causes and circumstance thereof, is expedient, he may by order direct a formal investigation to be held, and with respect to inquiries and investigations made or held under this Act the following provisions shall have effect :—

- (a) the Secretary of State may, by the same or any subsequent order, appoint any person or persons possessing legal or special knowledge to assist in holding a formal investigation, or may direct such county court judge, stipendiary magistrate, metropolitan police magistrate, or other person or persons as may be named in the order, to hold such an investigation with the assistance of any assessor or assessors named in the order :
- (b) the persons holding any formal investigation (in this section referred to as the court) shall hold it in open court in such manner and under such conditions as they think most effectual for ascertaining the causes and circumstances of the accident, and for enabling them to make the report in this section mentioned :
- (c) the court shall have for the purpose of the investigation all the powers of a court of summary jurisdiction when acting as a court in hearing informations for offences against this Act, and in addition the following powers, namely—
 - (i) they may enter and inspect any place or building the entry or inspection whereof appears to them requisite for the said purpose ;
 - (ii) they may by summons under their hands require the attendance of all such persons as they think fit to call before them and examine for the said purpose, and may for the said purpose require to be furnished to them answers or returns to such inquiries as they think fit to make ;

(iii) they may require the production of all books, papers and documents which they consider important for the said purpose ; A.D. 1937.

(iv) they may administer an oath, and require any person examined to make and sign a declaration of the truth of the statements made by him in his examination :

(d) persons attending as witnesses before the court shall be allowed such expenses as would be allowed to witnesses attending before a court of record ; and in case of dispute as to the amount to be allowed, the dispute shall be referred by the court to a master of the Supreme Court, who, on request under the hands of the members of the court, shall ascertain and certify the proper amount of the expenses :

(e) if any person without reasonable excuse (proof whereof shall lie on him) fails, after having had the expenses, (if any) to which he is entitled tendered to him, to comply with any summons or requisition of a court holding an investigation under this Act, or prevents or impedes the court in the execution of their duty, he shall be liable on summary conviction to a fine not exceeding ten pounds, or, in the case of a failure to comply with a requisition for furnishing any return or producing any document, not exceeding ten pounds for every day on which the failure occurs or continues :

(f) the person appointed to make an inquiry into any accident and the court holding an investigation of any accident under this section shall make a report to the Secretary of State, stating the causes of the accident and all the circumstances attending it, and containing any observations thereon or on the evidence or on any matters arising out of the inquiry or investigation which he or they think right to include in the report, and the Secretary of State shall cause every report so made to him to be made public in such manner as he thinks expedient.

15.—(1) Where a coroner holds an inquest upon the body of any person whose death may have been caused by any accident of which notice is required by this Act to be given to the Secretary of State, the coroner shall adjourn the inquest unless some person on behalf of the Secretary of State is present to watch the proceedings :

Coroners' inquests on deaths from accidents.

Provided that, if the accident has not occasioned the death of more than one person, and the coroner has sent to the Secretary of State notice of the time and place of holding the inquest not less than forty-eight hours before the time of the holding thereof,

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(2) The coroner before the adjournment, may take evidence to identify the body, and may order the interment thereof.

(3) The coroner, at least four days before holding the adjourned inquest, shall send to the Secretary of State notice in writing of the time and place of holding the adjourned inquest.

(4) A person employed on behalf of the Secretary of State shall be at liberty at any such inquest as aforesaid to examine any witness, subject nevertheless to the order of the coroner on points of law.

(5) Where at any inquest there is given evidence of any neglect having caused or contributed to an accident, the coroner shall, if no person employed on behalf of the Secretary of State is present at the inquest, send to the Secretary of State notice in writing of the neglect.

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